26STCV20930 26STCV20930

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 26STCV20930 Hearing Date: July 29, 2026 Dept: 833

Jacob Hartman Case No. 26STCV20930

v.

Hearing:

July 29, 2026

Location:

Stanley Mosk Courthouse

Department:

833 Meta Platforms and Instagram, LLC Judge: Joseph Lipner

Order Denying Preliminary Injunction

Plaintiff

Jacob Hartman ("Plaintiff") moves for a preliminary injunction restraining Defendants Meta Platforms, Inc. ("Meta") and Instagram, LLC ("Instagram") (collectively, "Defendants") from deleting, purging, altering, or otherwise destroying any data, photographs, videos, artwork, or content associated with Plaintiff's Facebook account and Instagram accounts @jaikhartman and @2weekslefts. The application for a preliminary injunction is unopposed as to Instagram.

The

Court DENIES the application for a preliminary injunction.

LEGAL STANDARD

The purpose of a preliminary injunction is to preserve the status quo pending a decision on the merits. (Major v. Miraverde Homeowners Ass'n. (1992) 7 Cal. App. 4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, including "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (White v. Davis (2003) 30 Cal.4th 528, 553-54.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on the merits. (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571.) Irreparable harm may exist if the plaintiff can show an inadequate remedy at law. (CCP § 526(a).)

"The granting or denying of a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy." (Cohen v. Board of Supervisors (1985) 40 Cal.3d 277, 286; see also Yee v. American National Ins. Co. (2015) 235 Cal.App.4th 453, 457-458 ["a preliminary injunction is not a determination on the merits…."].)

DISCUSSION

A. Summary of Facts

The application is based on Plaintiff's causes of action for breach of contract, breach of the implied covenant of good faith and fair dealing, conversion, and, unfair competition.

Plaintiff is a visual artist who uses Instagram accounts @jaikhartman and @2weeklefts and a connected Facebook profile (the "Accounts") to create, publish, and sell his original artwork—including works from his project "Those hills are always on fire"—and to store the photographic and video record of his work. (Complaint, ¶¶ 11-12.) After the Eaton Fire destroyed his home and the devices on which his files had been kept, the works stored in the Accounts became, for many items, the only surviving copies. (Complaint, ¶¶ 15-16, 31.)

On or about June 8, 2026, Meta's automated systems disabled Plaintiff's Instagram and Facebook accounts. (Complaint, ¶ 17.) Meta provided no statement of any specific policy violation or factual basis for the disablement. (Complaint, ¶ 17.) Plaintiff's Instagram account displayed a parallel notice stating that the account was disabled, that "[a]ll your information will be permanently deleted," and that Plaintiff "cannot request another review of this decision." (Complaint, ¶ 20.) The control needed to request review does not appear on Plaintiff's interface. (Complaint, ¶¶ 22-25.)

On June 22, 2026, a Meta agent acknowledged on a recorded line that the enforcement technology "sometimes may be wrong and you may be given an option to submit an appeal," and Plaintiff stated he had "never seen an option to submit an appeal." (Complaint, ¶ 26.) A supervisor then closed the case, directing Plaintiff to the same application that lacks the appeal control. (Complaint, ¶ 27.) He asserted that Meta did not reopen the case, and the data is scheduled for permanent deletion on or about July 8, 2026. (Complaint, ¶¶ 29-30.)

On July 7, 2026, Plaintiff sought a temporary restraining order against Meta. The Court (Murillo, J.) granted the ex parte application, issuing a TRO restraining Meta from deleting any of Plaintiff's materials pending the hearing on the OSC. The Court set the OSC for July 29, 2026.

On July 8, 2026, the day after the TRO issued, Meta's counsel informed Plaintiff's counsel that Plaintiff's account was active, and Plaintiff's counsel affirmed that this was correct. (Viser Decl., ¶ 2, Exh. A.)

B. Meta's Initial Arguments

Meta argues that Plaintiff cannot get a preliminary injunction because his accounts have been reinstated. (Opposition, 2:20-21.) This is not the law. "[T]here is no hard-and-fast rule that a party's discontinuance of illegal behavior makes injunctive relief against him or her unavailable. 'While voluntary cessation of conduct may be a factor in a court's exercise of its equitable jurisdiction to issue an injunction, it is not determinative….'" (Robinson v. U-Haul Co. of California (2016) 4 Cal.App.5th 304, 315.) There is the possibility that Defendants will disable the social media accounts again. Therefore, this is not a complete defense to the Court issuing a preliminary injunction.

Meta argues that “Plaintiff now has full access to his accounts” so “he can independently back up, download, or export any content he wishes to preserve.”(Opposition, 2:27-3:1.) However, downloading or backing up the content ignores what Plaintiff’s Complaint focuses on: the handles @jaikhartman and @2weekslefts, the audience and followers connected to the account, and the business identity Plaintiff has built surrounding those accounts. (Complaint, ¶ 24.)

Meta also argues that Section 230 of the Communications Decency Act bars any claim premised on the alleged removal of Plaintiff’s content. Section 230 provides that “[n]o provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider.” (47 U.S.C. § 230, subd. (c)(1).) Section 230 bars claims treating a provider as the “publisher” or “speaker” of information, not claims that arise from a breach of contract. This Complaint arises out of an allegation that Meta breached a contract , making Section 230 inapplicable. (Complaint, ¶¶ 32, 35; Barnes v. Yahoo!, Inc. (9th Cir. 2007) 570 F.3d 1096, 1107.) Barnes involved a promise made to one user; a promise in a contract Meta drafted, and that Plaintiff paid to accept, is no less a promise because Meta made it to many users.

Meta’s initial arguments are unpersuasive, though they have some obvious relationship to the merits discussed below. The Court next turns to the traditional preliminary injunction analysis.

C. Plaintiff’s Likelihood of Success on the Merits

I. Conversion Claim

A cause of action for conversion requires a plaintiff to show (1) the plaintiff’s ownership or right to possession of the property, (2) the defendant’s conversion by a wrongful act or disposition of property rights, and (3) damages. (Welco Electronics, Inc. v. Mora (2014) 223 Cal.App.4th 202, 208.)

According to Plaintiff's Complaint, Meta's own terms and conditions recognize that Plaintiff owns the photographs, videos, and digital artwork on Plaintiff's accounts. (Complaint, ¶ 42.) The Complaint also alleges that "Meta has wrongfully exercised dominion over Plaintiff's property by disabling his access to it, withholding it from him, and threatening to permanently destroy it, all inconsistent with Plaintiff's ownership and right to possession." (Complaint, ¶ 43.) As a result of this, Plaintiff "has been damaged in an amount to be proven at trial and the threatened destruction will cause harm that cannot be compensated in damages." (Complaint, ¶ 45.)

Meta argues that
Plaintiff's alleged damages consist of the mere possibility that his account content might be lost. (Complaint, ¶ 45.) Meta further states that because the account has been reinstated, Plaintiff has access to his accounts' content, and Plaintiff will not be able to prove damages. (Opposition, 5:14-23.) The terms of service and terms of understanding also show that Meta and Instagram are not liable for lost profits, revenues, information, or data. (Allen Decl., Exh. A, § 4.3; Exh. B, § 4.3; Exh. C, § 7.3.) Thus, Meta and Instagram cannot be liable for damages, and Plaintiff does not challenge this argument on reply.

Therefore, Plaintiff
has not shown the likelihood of success of the conversion claim.

II.
Breach of Contract Claim

To establish a
claim for breach of contract, a plaintiff must prove: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1367.)

The Complaint
alleges a contract whereby Plaintiff was permitted to store and access his content on Meta and Instagram and was entitled to notice and to a process to request review of a disablement before any permanent deletion of his account or data. (Complaint, ¶ 32.) Plaintiff argues that he performed all
obligations required under the Meta's Terms of Service and the Instagram Terms

of Use, such as paying his subscription and attempting to use the review process the Terms of Service directed him to use. (Complaint, ¶ 34.) Plaintiff argues that Meta breached the contract by disabling the Accounts with no valid determination that Plaintiff had breached the Terms; failing to let Plaintiff know and explain options he had to request review as Section 4.2 requires and providing an interface that made the promised review impossible; and threatening to permanently destroy Plaintiff's stored content notwithstanding the review to which he was entitled. (Complaint, ¶ 35.) As a result of this, Plaintiff "has been damaged and faces the imminent, permanent loss of irreplaceable property, in an amount to be proven at trial, and is entitled to injunctive relief to prevent that loss." (Complaint, ¶ 36.)

Meta argues that Plaintiff's alleged damages consist of the mere possibility that his account content might be lost. (Complaint, ¶ 36.) Meta further states that because the account has been reinstated, Plaintiff has access to his accounts' content, and Plaintiff will not be able to prove damages. (Opposition, 5:14-23.) The terms of service and terms of understanding also show that Meta and Instagram are not liable for lost profits, revenues, information, or data. (Allen Decl., Exh. A, § 4.3; Exh. B, § 4.3; Exh. C, § 7.3.) Thus, Meta and Instagram cannot be liable for damages, and Plaintiff does not challenge this argument on reply.

Therefore, Plaintiff has not shown the likelihood of success of the breach of contract claim.

III.
Implied Covenant of Good Faith and Fair Dealing Claim

"A breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself and it has been held that bad faith implies unfair dealing rather than mistaken judgment." (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1394.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated … [T]he only justification for asserting a separate cause of action for breach of the implied covenant is to obtain a tort recovery." (Id. at pp. 1394-1395.) To recover in tort for breach of the implied covenant, the defendant must "have acted unreasonably or without proper cause."

(Id. at p. 1395 [citations and italics omitted].)

Courts have raised the possibility that arbitrary or bad faith termination of user accounts, or even termination of user accounts with no explanation at all, could implicate the implied covenant of good faith and fair dealing. (Young v. Facebook, Inc. (N.D. Cal. May 17, 2011) 790 F.Supp.2d 1110, 1118.)

Plaintiff has alleged that implied in the contract between Plaintiff and Meta is a covenant that neither party will do anything to deprive the other of the benefits of the agreement and the Meta will exercise any discretion it holds under the Terms in good faith and consistent with the parties' reasonable expectations. (Complaint, ¶ 38.) Plaintiff has alleged that "Meta breached that covenant by exercising whatever discretion it possessed over the Accounts in an arbitrary and unreasonable manner, including by disabling the Accounts based on an automated miscategorization of protected artwork, removing or failing to provide the appeal control its own Terms and process require, closing Plaintiff's support case on a stated rationale that was contradicted by the condition of his own interface, and allowing an automated process to proceed toward permanent destruction of his data, thereby depriving Plaintiff of the benefits of the agreement actually made." (Complaint, ¶ 39.) Finally, Plaintiff has been damaged in an amount to be proven at trial and faces the imminent loss of irreplaceable property. (Complaint, ¶ 40.)

Meta argues that Plaintiff's alleged damages consist of the mere possibility that his account content might be lost. (Complaint, ¶ 40.) Meta further states that because the account has been reinstated, Plaintiff has access to his accounts' content, and Plaintiff will not be able to prove damages. (Opposition, 5:14-23.) The terms of service and terms of understanding also show that Meta and Instagram are not liable for lost profits, revenues, information, or data. (Allen Decl., Exh. A, § 4.3; Exh. B, § 4.3; Exh. C, § 7.3.) Thus, Meta and Instagram cannot be liable for damages, and Plaintiff does not challenge this argument on reply.

Therefore, Plaintiff has not shown the likelihood of success on the breach of the implied covenant of good faith and fair dealing claim.

IV.

Unfair Competition Claim

Under
Section 17204, a party must show that they have (1) established a loss or deprivation of money or property sufficient to qualify as injury in fact, i.e., economic injury, and (2) show that economic injury was the result of, i.e., caused by , the unfair business practice or false advertising that is the gravamen of the claim. (Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 322.)

Plaintiff alleges that they have lost money or property as a result of Meta's conduct and that Meta's conduct causes harm to consumes such as Plaintiff because it represents that users may obtain review of a mistaken disablement, while its interface withholds the means to obtain that review and an automated process destroys the user's data. (Complaint, ¶¶ 51-52.) Additionally, Plaintiff alleges that Meta's conduct is also fraudulent in that its representations regarding the availability of a review or appeal process are likely to deceive reasonable consumers. (Complaint, ¶
52.)

Unfortunately for
Plaintiff, the terms of service and terms of understanding also show that Meta and Instagram are not liable for lost profits, revenues, information, or data. (Allen Decl., Exh. A, § 4.3; Exh. B, § 4.3; Exh. C, § 7.3.) Thus, Plaintiff has not shown a substantial likelihood of success that Meta and Instagram can be liable for the alleged economic injury.

Plaintiff has not shown they are likely to succeed on the unfair competition claim.

V.
Injunctive Relief and Declaratory Relief

Plaintiff's
Complaint listed two other causes of action: (6) declaratory relief; and (7) injunctive relief. Plaintiff's opening brief did not request a preliminary injunction on the declaratory relief cause of action and so the Court declines to discuss that cause of action.

D.

Balance
of Harms

For the second factor, the court must consider “the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued.” (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 749.) “Irreparable harm” generally means that the defendant’s act constitutes an actual or threatened injury to the personal or property rights of the plaintiff that cannot be compensated by a damages award. (See Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410.)

Plaintiff has alleged he will suffer irreparable harm because the photographs, videos, artwork in the accounts are unique and irreplaceable, exist nowhere else, and cannot be recreated once deleted. (Complaint, ¶ 30.) Additionally, Plaintiff explains that the “Download Your Information” option Meta presents is not an adequate substitute for the Accounts or a remedy for their loss. (Complaint, ¶ 24.) According to Plaintiff, the files produced through that option are compressed and do not preserve the full-resolution original photographs, videos, and artwork stored in the Accounts. (Complaint, ¶ 24.) However, the Court is mindful of the fact that the concern that Meta

Meta did not identify any harm if the Court issues a preliminary injunction. If Meta is already preserving the accounts, an order requiring Meta to continue doing so imposes no burden. Meta identifies no cost, no operational difficulty, and no prejudice of any kind.

The balance of harms analysis weighs slightly in favor of Plaintiff getting an injunction, though the lack of an immediate, practical concern does mitigate against any showing of risk of harm to Plaintiff.

CONCLUSION

Plaintiff did not establish a likelihood of success on the merits. Accordingly, the Court DENIES the Application for a Preliminary Injunction.

IT IS SO ORDERED.

Dated: July 29,
2026

____

Joseph
Lipner

Superior
Court Judge